

Ore Prasad v. State of U.P. — disputed bill remitted to clause 6.5

Allahabad High Court · Division Bench · 2 February 2021 · Writ-C No. 2218 of 2021 · **Writ disposed; objection under clause 6.5 to be decided within six weeks.**

HEADNOTE

A 10 H.P. atta-chakki consumer sought finalisation of electricity dues and restoration after disconnection and a ₹5.75 lakh demand. The Division Bench did not examine the bill. Disposing of the writ, it directed that an objection filed within two weeks be decided by a reasoned speaking order, preferably within six weeks, in accordance with law, the respondents having invoked clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner ran a 10 H.P. atta chakki and alleged that the licensee never issued bills, though he paid on his own reading. After an inspection on 24 August 2019, supply to his house was disconnected. A 27 February 2020 notice demanded ₹5,74,883. He objected on 2 March 2020, deposited ₹50,000 as one-time settlement on 2 September 2020, and on 15 September 2020 sought a final bill and restoration. The respondents said a final bill had issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

Where the licensee has issued a final bill and invokes clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, a writ seeking finalisation of dues and restoration is disposed of by directing that an objection filed within two weeks be considered and decided by the competent authority by a reasoned speaking order, preferably within six weeks, in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court did not decide the bill or order restoration; it disposed of the writ with a time-bound direction that a fresh objection be decided in accordance with law after the respondents invoked clause 6.5. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The respondents treated the issued final bill as a matter for the statutory objection under clause 6.5; the Court channelled the consumer to that objection without a merits finding. ¶ 1

6.5-representation-as-appropriate-remedy The operative relief was a direction to file and have decided an objection before the competent authority, not a High Court determination of dues or reconnection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.5 BARS THE WRIT

The Court said 'be that as it may' and did not decide the exclusive-remedy objection. ¶ 1

NOT DECIDED — CORRECTNESS OF THE ₹5,74,883 DEMAND AND ANY FINAL BILL

Left to the competent authority on a fresh objection. ¶ 1

NOT DECIDED — RESTORATION OF DISCONNECTED SUPPLY

¶ 1

